

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRETT LAMY,

Petitioner

VS.

LIANA DIMAURO,

Respondent

) Case Number: FDI-25-800840

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

MOTION FOR JOINDER OF ADDITIONAL PARTIES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Brett Lamy and Respondent Liana DiMauro.
- 2) On 1/21/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/19/22 and date of separation is 12/8/24 for marriage of 2 years and 2 months.
- 3) On 1/28/26, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 9/19/22; however, the date of separation is 8/18/24.
- 4) On 4/10/26, Petitioner filed a Notice of Motion and Declaration of Joinder seeking to join a third-party, Paul DiMauro (Respondent's father), to the instant dissolution action because Paul holds title to an investment made during marriage that is controlled by the parties' premarital agreement and requires characterization as separate or community property. Petitioner states he filed a separate civil action (case no. CGC-25-629933) though resolution of the civil case is contingent upon this Court's characterization of property. It is Petitioner position that maintaining parallel civil and family court proceedings risks duplicative litigation and incontinent rulings. Petitioner

1 asserts that he would dismiss the civil action if Paul DiMauro were joined in the dissolution
2 action.

3 5) On 4/10/26, Petitioner filed a supportive attorney declaration.

4 6) On 4/10/26, Petitioner filed a Memorandum of Points and Authorities.

5 7) On 4/28/26, Respondent filed a Responsive Declaration. Respondent consents to an order of
6 joinder of Paul DiMauro and Diane DiMauro (Respondent's parents) as parties to the dissolution
7 proceeding. It is Respondent's position that characterization of the investment cannot be resolved
8 with the DiMauros' participation as parties, and joinder serves judicial economy, promotes
9 finality, and avoids the risk of inconsistent rulings in parallel proceedings.

10 **B. Findings and Order**

11 1) The Court has discretion to join a third-party holding property in which one of the spouses claims
12 a community interest. See Family Code section 2021; *Marriage of Siller* (1986) 187 CA3d 36,
13 42.

14 2) However, exercising such discretion is extremely rare and requires that the Court find joinder of a
15 third-party is the only reasonable path given the highly personal nature of dissolution
16 proceedings. *Schnabel v. Sup.Ct.* (1994) 30 CA4th 758, 763.

17 3) Additionally, the required criteria set forth in California Rules of Court, rule 5.24(c) and (e)(2)
18 includes a finding, "that the person to be joined as a party is either indispensable for the court to
19 make an order about that issue or is necessary to the enforcement of any judgment rendered on
20 that issue."

21 4) It is undisputed that Paul DiMauro and Diane DiMauro hold title to an investment made during
22 marriage that is controlled by the parties' premarital agreement and requires characterization as
23 separate or community property because Respondent claims an interest. The Court therefore finds
24 that Paul DiMauro and Diane DiMauro are indispensable and necessary parties to the dissolution
25 action as the nature of the investment prevents a retitling order.

26 5) Accordingly, Petitioner's Notice of Motion and Declaration of Joinder is GRANTED. Paul
27 DiMauro and Diane DiMauro are hereby joined as parties to the dissolution action.

28 6) The Court reserves jurisdiction over the characterization of the investment.

29 7) The Court will prepare the Findings and Order After Hearing.